



April 18th 2016 Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Bvlw65PLJok
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Municipal Meeting Summary Report

Meeting Date: April 18, 2016

Governing Body: Delaware County Commissioners (Muncie, Indiana)

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on 1619 East Highland Avenue 00:11:14 <U+2013> Proposed transfer of tax sale property to a non-profit organization to establish a community park.
- **Summary of Discussion:**
 - John Bailey presented a vision for a five-lot community park in the Whitely neighborhood. The target property (1619 East Highland Avenue) features a dilapidated, vacant house containing toxic mold that has generated no tax revenue since the owner's death in 2004.
 - The project has received community support, volunteer labor (from a Jay County farmer taking down structures pro bono), urban forestry contributions (24 trees installed), and parks and recreation support for benches. Local law enforcement was consulted to ensure the park would not become a drug hotspot.
 - Public testimony in strong support was offered by State Representative Sue Errington 00:07:00, Frank Scott (President of the Whitely Neighborhood Community Council) 00:07:54, and Ann Bishop (City of Muncie, providing technical assistance) 00:08:48.

- The public hearing was closed by voice vote [00:09:57](#).
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2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Convened by the presiding officer on April 18, 2016.
 - **Attendance:**
 - *Members Present:* Mr. King, Mr. Reagan, Mr. Henry (Note: Specific individual roll call responses are captured via automated roll call sequences in the transcript).
 - *Presiding Officer:* Not explicitly named in spoken roll call, but leadership functions managed collectively by the commissioners.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opened with the Pledge of Allegiance followed by a moment of silence for Mr. Ronda [00:00:10](#).
 - **Approval of Minutes:** Motion carried to approve the minutes of the April 4, 2016 Commissioners' Meeting and the April 6, 2016 Commissioners' Executive Session [00:10:29](#).
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4. Substantive Business & Board Action

- [00:10:43](#) **Presentation: Delaware County Bicentennial**
 - *Presenter:* Nancy Carlson, Delaware County Coordinator for the Bicentennial Commission.
 - *Deliberation Summary:* Introduced "Buffy the baby bison" and announced plans for an 8-foot-long, 5-foot-tall replica bison painted by a local artist to be placed in a park near Fallen Heroes Bridge as part of a statewide 92-county project. Detailed upcoming bicentennial events, including an Indiana history film festival (May 20<U+2013>21), an original cantata titled *The Middletown Chronicles* at Muncie Central High School (May 14), a historical photographic exhibit, and the Bicentennial Torch Relay passing through Delaware County on September 27, preceded by a free pancake breakfast.
- [00:14:34](#) **Contract / Development Agreement: Cardinal Woods Subdivision (Sections A, B, and C)**
 - *Sponsor / Presenter:* Martin Muncie (Plan Commission) alongside Michael Stikeweather (Managing Member, Parent and Woods LLC).
 - *Deliberation Summary:* Discussion regarding an agreement for the completion of streets in the Cardinal Woods subdivision, which had stalled following the 2008 housing market downturn. The unpaved road has already been re-graded by local contractors, and traffic restriction signs have been ordered. The agreement

establishes a compromise framework requiring two-thirds of the lots to be built per section before paving, with road completion targeted by October 1, 2016, to enable building permits.

- *Action & Vote Disposition:* Approved by Voice Vote [00:23:25](#).
- **[00:23:36](#) Contracts: Electronic Monitoring of Inmates (Community Corrections)**
 - *Sponsor / Presenter:* Mitch Castle, Executive Director of Community Corrections.
 - *Deliberation Summary:* Renewal of three pre-trial jail release and electronic monitoring equipment contracts expiring April 20. Pricing and terms remain identical to the previous year.
 - *Action & Vote Disposition:* Approved by Voice Vote (all three contracts bundled) [00:25:19](#).
- **[00:25:50](#) Ordinance 16-0 [Unspecified Number]: Materiality Policy (Second Reading)**
 - *Sponsor / Presenter:* Presented by board leadership / legal counsel.
 - *Deliberation Summary:* Second reading of an updated materiality policy ordinance based on State Board of Accounts guidance and auditor feedback. Thresholds set at \$500 for one-time cash loss, \$50/month for recurring cash loss, and \$500 for one-time asset loss or creation of additional liability (\$1,000/month average). Clarifies mandatory reporting rules for known thefts.
 - *Action & Vote Disposition:* Approved by Voice Vote [00:27:41](#).
- **[00:28:03](#) Ordinance 2016-007: Non-Reverting Permanent Grant Fund**
 - *Sponsor / Presenter:* Mr. Ellison / Bill Crook.
 - *Deliberation Summary:* Establishes a permanent non-reverting fund for an annual grant shared with the city, eliminating the need to re-approve the ordinance annually.
 - *Action & Vote Disposition:* Introduced, rules suspended, and adopted by Voice Vote [00:29:13](#) <U+2013> [00:29:54](#).
- **[00:30:12](#) Resolution 2016-16 [Note: Actual numbering referenced in discussion as 18/19/20]: Tax Sale Certificate Transfer for 1619 East Highland Avenue**
 - *Sponsor / Presenter:* County Commissioners / Auditor's Office.
 - *Deliberation Summary:* Formal resolution transferring the tax sale certificate for the park project property (1619 East Highland Avenue) to a non-profit.
 - *Action & Vote Disposition:* Approved by Voice Vote [00:30:32](#).
- **[00:31:27](#) Resolution (Gilbert Street Properties: 1423 S. Gilbert St. & 1417 S. Gilbert St.)**
 - *Sponsor / Presenter:* County Commissioners.
 - *Deliberation Summary:* Resolution regarding tax sale properties on Gilbert Street. Because representatives were not present to speak, the item was tabled.
 - *Action & Vote Disposition:* Tabled by Voice Vote [00:32:08](#).
- **[00:32:31](#) Resolution 2016-20: Tax Sale Certificates (East Kirby Properties)**
 - *Sponsor / Presenter:* Janet Kessler, Tax Sale Deputy (Auditor's Office).

- *Deliberation Summary*: Request for two additional properties on East Kirby to begin the tax sale certificate assignment process, leading to a future public hearing.
- *Action & Vote Disposition*: Approved by Voice Vote [00:32:59](#).
- **00:33:24 Bid Openings: Bridge Replacement at Prairie Creek**
 - *Sponsor / Presenter*: John (Highway/Engineering Department).
 - *Deliberation Summary*: Opening of bids for bridge replacement at Prairie Creek (due April 15 at noon):
 1. **Bozur Pride Excavating** (Springport, IN): \$493,672.19 [00:33:58](#)
 2. **Duncan Robertson Engineering** (Franklin, IN): \$631,193.30 [00:34:25](#)
 3. **Baty Construction** (Yorktown, IN): \$603,529.97 [00:34:56](#)
 4. **Reef Riley Construction** (Indianapolis, IN): \$730,450.00 [00:35:18](#)
 5. **HIS Constructors** (Indianapolis, IN): \$798,800.00 [00:35:47](#)
 - *Action & Vote Disposition*: Bids opened and read aloud (referred for administrative review).
- **00:37:14 Justice Center Uninterruptible Power Supply (UPS) Batteries**
 - *Sponsor / Presenter*: Presented via email from Bruce Dunn / discussed by board.
 - *Deliberation Summary*: The Justice Center UPS system (installed in 2007 with no major maintenance since year one) failed recent testing. The system powers critical infrastructure, including fire alarms, CAD/RMS/New World servers, 911 backup radios/phones, microwave links, jail control, and court computers. Emerson Network Power quoted \$3,786 for replacement batteries and service. Commissioners discussed capping expenditure at \$4,000 for batteries and installation.
 - *Action & Vote Disposition*: Approved expenditure up to \$4,000 by Voice Vote [00:43:03](#).
- **01:10:16 Personnel / Office Disciplinary Action Motion**
 - *Sponsor / Presenter*: Commissioners / Board Members.
 - *Deliberation Summary*: Motion brought forward concerning an incident on March 29 in a county office, requesting a letter be sent to the department head requesting employee termination.
 - *Action & Vote Disposition*: Motion made and seconded; approved by Voice Vote [01:10:55](#).

5. Open Public Comment / Citizen Forum

- No general citizen forum or open floor public comment period was held at the conclusion of this meeting; public input was restricted to the specific public hearing regarding 1619 East Highland Avenue earlier in the agenda.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- Discussion regarding county building security enhancements, parking garage and exterior security cameras, voter ID white cards, and restricting employee entry points through metal detectors for workplace safety.
- Extended debate between the Commissioners and 911/EMA Director regarding the rollout, compliance, and tracking of new employee time clocks [00:45:51](#).
- Notice of an upcoming County Council finance meeting on Thursday to review building fund requests [00:44:23](#).

- **Adjournment:** Meeting recessed / adjourned by voice vote at the conclusion of business [00:11:49](#).

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